

SUBSTITUTE FOR
HOUSE BILL NO. 5903

A bill to amend 1974 PA 258, entitled
"Mental health code,"
by amending section 134 (MCL 330.1134), as amended by 2015 PA 59.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 134. (1) The director shall establish a comprehensive
2 system of licensing for psychiatric hospitals and psychiatric units
3 in ~~the~~**this** state to protect the public by ensuring that ~~these~~
4 **psychiatric** hospitals and **psychiatric** units provide the facilities
5 and the ancillary supporting services necessary to maintain a high
6 quality of patient care. Separate criteria ~~shall~~**must** be developed
7 for licensing hospital beds for minors.

8 **(2) A psychiatric hospital or psychiatric unit licensed to**
9 **provide both adult and minor psychiatric inpatient services may use**



1 a licensed inpatient psychiatric bed on a temporary basis for an
2 adult or minor if doing so is in the best interest of the patient,
3 the patient's needs can be adequately met in the unit, the patient
4 is compatible with other patients in the unit, and doing so is
5 necessary to meet the psychiatric hospital's or psychiatric unit's
6 patient care needs and the psychiatric hospital or psychiatric unit
7 complies with applicable safety, staffing, and treatment
8 requirements established by the department. This subsection only
9 applies to a psychiatric hospital or psychiatric unit that is
10 already licensed and operational and approved under a valid
11 certificate of need issued under part 222 of the public health
12 code, 1978 PA 368, MCL 333.22201 to 333.22260, before the effective
13 date of the amendatory act that added this section.

14 (3) Temporary use of a licensed inpatient psychiatric bed
15 under subsection (2) does not change the licensed designation of
16 the bed or constitute a change in bed capacity, service category,
17 bed classification, number of approved beds, or department
18 inventory of beds for the purpose of a certificate of need review
19 under part 222 of the public health code, 1978 PA 368, MCL
20 333.22201 to 333.22260, or any other certificate of need review
21 standard.

22 (4) An individual patient placement that exceeds temporary
23 does not violate this section if the psychiatric hospital or
24 psychiatric unit demonstrates ongoing clinical necessity and is
25 pursuing a discharge or extension or is arranging a transfer to an
26 appropriately designated bed.

27 (5) ~~(2)~~—The director shall coordinate all functions within
28 state government affecting psychiatric hospitals, and shall
29 cooperate with other state agencies that establish standards or



1 requirements for facilities providing mental health care to ~~assure~~
2 **ensure** necessary, equitable, and consistent state regulation of
3 ~~these~~**the** facilities without duplication of inspections or
4 services. The director may enter into agreements with other state
5 agencies to accomplish this purpose.

6 (6) As used in this section, "temporary" means a period of not
7 more than 90 consecutive days for an individual patient placement
8 unless a 90-day extension is appropriate and approved by the
9 department based on demonstrated clinical necessity or capacity
10 limitations.